

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

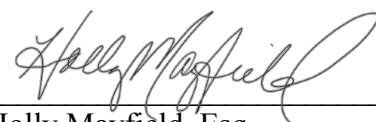


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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

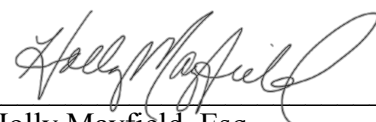


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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025



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holly.mayfield@yahoo.com

VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

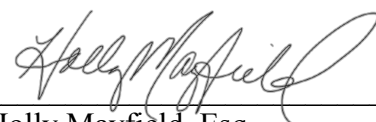


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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

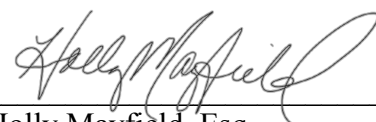


Holly Mayfield, Esq.
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Marion, Massachusetts 02738
(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
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(774) 400-4737
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

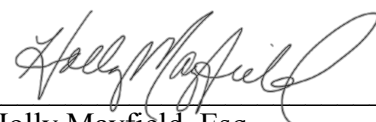


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
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(774) 400-4737
holly.mayfield@yahoo.com

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
Marion, Massachusetts 02738
(774) 400-4737
holly.mayfield@yahoo.com

VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
Marion, Massachusetts 02738
(774) 400-4737
holly.mayfield@yahoo.com

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

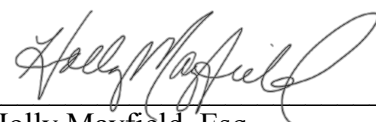


Holly Mayfield, Esq.
B.B.O.# 687193
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Marion, Massachusetts 02738
(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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holly.mayfield@yahoo.com

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, "Nationstar, LLC, d/b/a Mr. Cooper" constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

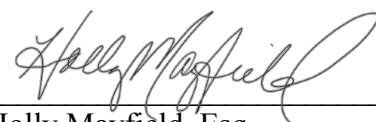


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

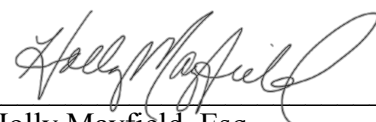


Holly Mayfield, Esq.
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

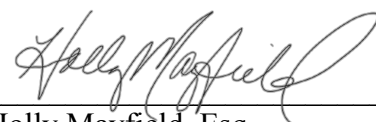


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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holly.mayfield@yahoo.com

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

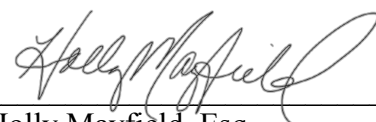


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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holly.mayfield@yahoo.com

Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

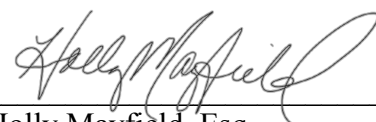


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
Marion, Massachusetts 02738
(774) 400-4737
holly.mayfield@yahoo.com

VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
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Marion, Massachusetts 02738
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
Marion, Massachusetts 02738
(774) 400-4737
holly.mayfield@yahoo.com

VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
B.B.O.# 687193
4 Olde Logging Road
Marion, Massachusetts 02738
(774) 400-4737
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

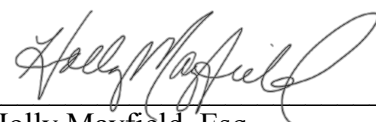


Holly Mayfield, Esq.
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above “Verified Complaint” filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

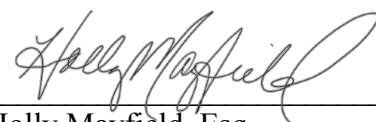


Holly Mayfield, Esq.
B.B.O.# 687193
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

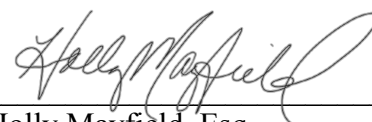


Holly Mayfield, Esq.
B.B.O.# 687193
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(774) 400-4737
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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above “Verified Complaint” filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



Holly Mayfield, Esq.
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Commonwealth of Massachusetts

THE TRIAL COURT
SUPERIOR COURT DEPARTMENT

PLYMOUTH, ss

Superior Court Action No. _____

HOLLY MAYFIELD, ESQ.

Plaintiff

v.

NEWREZ, LLC, D/B/A SHELLPOINT

MORTGAGING SERVICES

Defendant;

JOSEPH C. REARDON,

Defendant

COMPLAINT FOR PRELIMINARY INJUNCTION, DECLARATORY JUDGMENT AND
JURY TRIAL DEMAND

I. INTRODUCTION

The Plaintiff, Holly Mayfield, Esq., is seeking equitable relief through this petition for preliminary injunction and declaratory judgment as described below. This complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint"), breached the terms of that certain mortgage noted herein, given by the Defendant, Joseph Reardon, former spouse of the Plaintiff as secured by the real property owned by the Plaintiff and Joseph Reardon located at 4 Olde Logging Road, Marion, Massachusetts. The Defendants breached the mortgage contract by sending a purported default notice in accordance with the mortgage contract that failed to strictly comply with the condition precedent terms of Paragraph 22 of the Mortgage. Plaintiff alleges that the default/right to cure notice described in this Complaint that was sent by Defendant Shellpoint is invalid and resulted in a void acceleration and void foreclosure initiation for a failure to strictly comply with a condition precedent of the mortgage, violating M.G.L. Ch

183 Section 21 and M.G.L. c. 244, Section 14.

Defendant's breach resulted in a void default notice pursuant to the terms to the mortgage and a void acceleration of the mortgage pursuant to said mortgage.

Additionally, this complaint alleges that Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing ("Shellpoint") does not have the authority to accelerate the Mortgage and invoke the Statutory Power of Sale under M. G. L. c. 183, § 21 and M. G. L. Ch. 244 § 14 on the Plaintiff's real property located at 4 Olde Logging Road, Marion, Massachusetts (the "Property") while the Defendant is not a "Lender" and does not hold the Promissory Note. Plaintiff avers that the Defendant will not be able to convey said Property by "proper deed" in accordance with the Massachusetts Statutory Power of Sale as set forth in M.G.L. c. 183, § 21 and M. G. L. Ch. 244 § 14 because the assignment of the Mortgage on the Property fails to show a consistent and unbroken chain of title of the Mortgage and is therefore void and will not render a marketable title as Newrez, LLC d/b/a Shellpoint Mortgage Servicing is not the holder of the Note and therefore not capable of accelerating the Mortgage and/ or invoking the Statutory Power of Sale. Accordingly, Plaintiffs are entitled to a declaratory judgment that Defendant lacked and lacks standing to accelerate the Mortgage, foreclose and sell the Property, and that any foreclosures and sale of the Property by Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is ineffective, without force or effect and void.

The Plaintiff prays that this Honorable Court find that the Defendant breached the terms of the mortgage and further find said default notice and acceleration are invalid and void. Further said Plaintiff also prays that this Honorable Court find that any foreclosure sale conducted by the Defendant, Shellpoint, and foreclosure deed granted subsequent to the invalid default notice be declared null and void regardless of whether or not said invalid foreclosure

deed was recorded, enjoin the Defendant, Shellpoint, from conducting any foreclosure auction or conveyance of the subject property and declare any resulting foreclosure deed null and void. Plaintiff also seeks declaratory relief, injunctive relief, actual, monetary, punitive and exemplary damages, restitution, an accounting, attorney's fees and costs, and all other relief provided by law for Defendant's wrongful acts.

JURISDICTION AND VENUE

1. This Honorable Court has subject matter jurisdiction as the subject property at issue is located in the Commonwealth of Massachusetts, Plymouth County, and Plaintiff resides at said subject property.

2. Venue is proper in this Honorable Court in that the events or omissions giving rise to this claim have occurred, and the real property that is subject of the action is situated within the Commonwealth of Massachusetts, Plymouth County.

PARTIES

3. Plaintiff, Holly Mayfield, Esq., is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

4. Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is a residential mortgage servicing company, located at 75 Beattle Place, Suite 300, Greenville, SC 29601.

5. Defendant, Joseph Reardon, is a citizen of Massachusetts and the co-owner of the subject property located at 4 Olde Logging Road, Marion, Massachusetts 02738.

ALLEGATIONS OF THE PLAINTIFFS

6. Plaintiff, Holly Mayfield, Esq., resides at and claims to be the co-owner of real property located 4 Olde Logging Road, Marion, Massachusetts, which is the subject property as

referenced herein.

7. On January 2, 2019, the subject property was granted by quitclaim deed to the Defendant, Joseph Reardon, Plaintiff's Husband. The Deed evidencing that conveyance of the subject property was recorded in the Plymouth County Registry of Deeds on January 2, 2019, Book 50691, Page 107.

8. On May 18, 2021, Defendant, Joseph Reardon, granted a mortgage secured by their interest in the subject property, in the amount of \$444,780.00, for the benefit of the the Plaintiff and himself, which was recorded in the Plymouth County Registry of Deeds in Document No. 00057276 on May 18, 2021. (the Mortgage) The Mortgage identified "Nationstar Mortgage, LLC, d/b/a Mr. Cooper" as the Lender and MERS as mortgagee.

9. The Mortgage states at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not

limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

10. The Mortgage states at paragraph 15 as follows: "any notice to borrower...shall be deemed to have been *given* to Borrower when *mailed* by first class mail *or when actually delivered* to Borrower's notice address *if sent by other means*".

11. Paragraph 19 of the Mortgage also required that prior to acceleration and foreclosure the Defendant was required to send the "borrowers" a Default Notice which informed the Plaintiff and Defendant Joseph Reardon (the "borrowers") that they had a "right to reinstate after acceleration".

12. On February 14, 2025, the Mortgage was purportedly assigned from MERS to the Defendant Newrez, LLC, d/b/a Shellpoint Mortgage Servicing. Said assignment was recorded in the Plymouth County Registry of Deeds in Document No. 00009274 on February 14, 2025.

13. The grantor of the assignment recorded on February 15, 2025 is not the same named entity as the grantee of the promissory note ("the Note"), which was granted to the actual Lender, "Nationstar Mortgage, LLC, d/b/a Mr. Cooper". The Defendant, Newrez, LLC, d/b/a Shellpoint Mortgage Servicing is not a "Lender" where it does not hold the Note and there is no evidence that the Note was duly transferred or assigned to the Defendant Shellpoint. Therefore, Defendant, Shellpoint is barred from asserting the authority to foreclose the mortgage on behalf of the Lender, "Nationstar LLC, d/b/a Mr. Cooper". Notice of any such transfer of interest or authority purportedly held by the Defendant, Shellpoint, was not duly provided and not contained within the complete record for the mortgage acquired by subpoena to the Plaintiff. See, Eaton v. Nat'l Mort. Ass'n, 462 Mass. 569 (2012).

14. Plaintiff avers that the Defendant, Shellpoint, did not send and that Plaintiff did not

receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

15. Plaintiff further alleges that any notice purportedly sent by the Defendant, Shellpoint, was sent only to the Defendant, Joseph Reardon, residing at a different address, purporting to state compliance with paragraph 22 of the Mortgage and failed to contain the required information as described in the Mortgage and was not in strict compliance with said paragraph.

16. The Defendants accelerated the mortgage. The acceleration is null and void.

17. On November 26, 2025, Defendants caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action against Plaintiff and Mr. Reardon. The action was assigned docket no. 25SM003706.

18. On November 26, 2025, Defendant, Shellpoint, filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007, purporting to act on behalf of the "holder of the note". The Affidavit was signed under the pains and penalties of perjury by the Defendant Shellpoint, and stated that the Defendant, Joseph Reardon, was sent a notice dated January 16, 2025 pursuant to the 90 Day Right to Cure Default under M.G.L. c. 244 § 35A.

19. On November 26, 2025, Defendant, Shellpoint, filed a Complaint to Determine Military Status, in which it states that it "alleges on information and belief that the Defendant(s) is/are the only person(s) holding the equity of redemption of the property covered by the mortgage described in paragraph 1 of this Complaint so far as it appears of record in the said Registry of Deeds and as known to your Plaintiff".

20. On January 2, 2019, the Defendant executed a Homestead in the name of the Plaintiff,

Holly Mayfield, as Wife, recorded in the Plymouth County Registry of Deeds as Document No. 00000152.

21. On September 3, 2024, the Plaintiff and the Defendant, Joseph Reardon, executed a Judgment of Divorce entered in the Plymouth County Probate and Family Court on September 12, 2024. Page 15 of the Judgment of Divorce grants the equity in the property (the former marital home) solely to the Plaintiff and orders the Defendant, Joseph Reardon to execute a deed to Plaintiff, granting her sole title and interest in the property.

22. On or about January 30, 2025, Plaintiff contacted the Defendant, Shellpoint, and gave notice of her interest in the property and inquired as to the procedure by which she could obtain an assumption of the mortgage, wherefore, she believed the Defendant, Joseph Reardon had defaulted on the mortgage.

23. On or about May 1, 2025, the Plaintiff requested all records relating to the mortgage and note from the Defendant, Shellpoint, by formal subpoena under the pending post-judgment litigation in the divorce.

24. Included in the subpoena response are records of the correspondence between the Defendants between September of 2024 and May of 2025, regarding Plaintiff's successor interest, with demands by Defendant, Joseph Reardon that the Defendant, Shellpoint, refrain from providing any information to the Plaintiff about the mortgage.

25. The Defendant, Shellpoint, had actual knowledge of the Plaintiff's successor interest in the property, and failed to provide any due notice as required by M.G.L. c. 244, Section 14, and furthermore, reported knowingly false information in its Land Court Complaint purporting to know of no other person holding the equity of redemption of the property.

25. By the terms of the Judgment of Divorce, entered in the Probate and Family Court on

September 12, 2024, the Plaintiff is the holder of a successor interest and Defendant, Joseph Reardon was required to execute a deed to the property to the Plaintiff.

26. The Plaintiff intended to sell the property, which has been actively listed for sale since October of 2024. However, the said Judgment of Divorce was appealed and is presently pending in the Court of Appeals (Appeals Court Docket No. 2025-P-1147; 2025-P-0822; and Supreme Judicial Court Docket No. SJ-2025-0493). The Plaintiff and the Defendant, Joseph Reardon are precluded from taking further action towards resolution of the outstanding mortgage due to the appeal. Once decided in the Court of Appeals, new orders will be required from the probate and family court, resolving the issues presented by this action, rendering Defendant, Shellpoint's, exercise of its power of sale moot.

27. Plaintiff is an innocent party to the foreclosure, whose rights are affected by the misconduct of the Defendants. Plaintiff is at risk of imminent irreparable harm to her interests by the Defendant's actions. Plaintiff's likelihood of success on the merits is guaranteed. Both the Plaintiff, and the Defendant, Joseph Reardon have and continue to make reasonable efforts to sell the property, but are precluded by the delay of the probate and family court proceedings.

28. Plaintiff was entitled to due notice as required by M.G.L. c. 244, Section 14, as she is, by definition, a "person of record...holding an interest in the property..." and has an unequivocal right to reinstate the mortgage before the foreclosure.

29. Furthermore, the default/right to cure notice states on page 4 that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure". Since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes

upon the unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the Plaintiff's unequivocal right to reinstate their mortgages and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

30. Plaintiff alleges that the purported Default Notice sent by the Defendants failed to fully and "properly" describe the mortgagor's "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that *"Shellpoint reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure"* is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the mortgagor's unequivocal right to reinstate the mortgage and to "still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place".

31. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

32. As such, the Defendant failed to provide the Plaintiff and the Defendant, Joseph Reardon proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

COUNT I
**BREACH OF CONTRACT AND FAILURE TO COMPLY WITH CONDITIONS
PRECEDENT TO ACCELERATION**

33. Plaintiff repeats and re-alleges every allegation above as if set forth herein in full.

34. As described above, the mortgage contract entered into by Defendant, Joseph Reardon and former lender, “Nationstar, LLC, d/b/a Mr. Cooper” constitutes a valid offer.

35. Upon Defendant, Joseph Reardon executing the mortgage contract and giving it to the Lender, the Lender accepted that offer.

36. Alternatively, Defendant, Joseph Reardon's execution of the mortgage contract thereby purporting to give his security interest in the property to the Lender constitutes an offer. Acceptance of the offer occurred when Defendants accepted payments made by Mr. Reardon pursuant to the mortgage contract.

37. The mortgage contract was supported by consideration. Defendant, Joseph Reardon's payments to Defendant, Shellpoint, constitutes consideration.

38. Defendant, Shellpoint, and Defendant, Joseph Reardon thereby formed a valid contract and Plaintiff was and remains ready, willing and able to perform as successor in interest under said contract.

39. Defendant, Shellpoint, breached the mortgage contract by failing to meet its obligations pursuant to, the terms as agreed to found at paragraphs 15 and 22 of the Mortgage which state in pertinent part, at paragraph 22 as follows:

"22. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument ... The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further

inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale,

and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it."

40. The Mortgage states at paragraph 15 as follows: "any notice to borrower. .. shall be deemed to have been *given* to Borrower (and all other persons holding interest in the property) when *mailed* by first class mail *or when actually delivered* to Borrower's notice address or "*sent by other means*".

41. Paragraph 22 of the Mortgage also provides that prior to acceleration and foreclosure, the Defendant, Shellpoint, was required to send the borrowers (and holders of successive interest) a Default Notice which informed borrowers that they had a "right to reinstate after acceleration".

42. In Massachusetts, a contract containing an obligation of the Lender is construed as a condition precedent, which requires strict compliance.

43. In Massachusetts, a mortgagee agreeing to abide certain obligations pursuant to the mortgage before acceleration, foreclosure, and sale, must adhere to those obligations, with the level of specificity as agreed.

44. In Massachusetts, strict compliance with the requirements of paragraph 22 of the

mortgage is an obligation of the mortgagee. Failure to send proper Notice of Default pursuant to paragraph 22 as noted herein and M.G.L. c. 244, Section 14, is a breach of mortgage contract rendering any acceleration, attempted foreclosure, and sale of the subject property void.

45. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

46. Plaintiffs further allege that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

47. The Defendant, Shellpoint, accelerated the mortgage. The acceleration is null and void.

48. On November 26, 2025, Defendant, Shellpoint, caused to be filed a Complaint in the Massachusetts Land Court pursuant to the Servicemembers Relief Act 50 USC c. 50 § 3901 et. seq. to determine Servicemember status of the Defendant, Joseph Reardon, for the purpose of initiating foreclosure action. The action was assigned as docket no. 25SM003706.

49. On November 26, 2025, Defendants filed in the Land Court Case a Mortgagee's Affidavit Under Chapter 206 of the Acts of 2007. The Affidavit was signed under the pains and penalties of perjury by the Defendant, Shellpoint, and stated that notice was sent in compliance with the Mortgagor's 90 Day Right to Cure his Default under M.G.L. c. 244 § 35A.

50. The Defendant, Shellpoint's, sworn affidavit in the Land Court Case appears to be a "hybrid" form default/ right to cure Notice dated November 24, 2025 purporting to comply with M.G.L c. 244 §35A.

51. The Notice that was obtained through subpoena by the Plaintiff is dated January 16, 2025, and states that "After 4/16/2025, you can still avoid foreclosure by paying the total past due

amount before a foreclosure sale takes place”, and “If you do not pay the total past due amount of \$6,537.047 by 4/16/2025, you may be evicted from your home after a foreclosure sale”. This language effectively extended the Plaintiff and Defendant, Mr. Reardon's, right to reinstate after acceleration to "anytime" before the foreclosure. See, Thompson v. JP Morgan Chase Bank, NA., 486 Mass. 286 (2020).

52. Contrary to the unequivocal right to reinstate that was extended to "anytime" before the foreclosure, the default/right to cure notice states that "You may redeem the property by paying the total amount due prior to the foreclosure sale" and that Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure".

53. Firstly, Plaintiff was not provided actual notice as required by statute, and was not then able to intervene. Any rights of the Plaintiff to cure the default could not be duly asserted.

54. Second, since the "total amount due" when the mortgage is accelerated is the accelerated amount, this language is contrary to, waters down and infringes upon the Plaintiffs unequivocal right to reinstate the mortgage by paying less the accelerated amount "anytime" before the foreclosure.

55. The above statements are additional and unnecessary language in the notice that is not in strict compliance with the Plaintiffs' mortgage because it may serve to water down, contradict or nullify the Plaintiffs' unequivocal right to reinstate their mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place". See Fed. Nat'l. Mortg. Ass'n v. Marroquin, 74 N.E.3d 592 (Mass. 2017).

56. Such ambiguous and unnecessary language in the hybrid notice as stated above presumes to give the Defendant, Shellpoint, the power to delay acceptance of or reject a tender of payment

pursuant to the unequivocal right to reinstate under Paragraphs 19 and 22 of the Mortgage. Such language further serves to allow the Defendant, Shellpoint, to reject payment or continue to proceed enforcing their rights of acceleration and foreclosure if tender payment that is less than the whole accelerated balance in breach of the Plaintiff's or Defendant, Mr. Readon's unequivocal right to reinstate and to "avoid foreclosure by paying the total past due".

57. Plaintiff alleges that the purported Default Notice filed in the Land Court case by the Defendants failed to fully and "properly" describe the Plaintiffs' "right to reinstate after acceleration" as required by and detailed in Paragraph 22 of the Mortgage. Furthermore, the form notice's statement that "Shellpoint "reserves the right to accept or reject a partial payment of the total amount due without waving its right to proceed with foreclosure" is additional and unnecessary language in the notice that is not in strict compliance with the mortgage because it may serve to water down, contradict or nullify the unequivocal right to reinstate the mortgages and to "still avoid foreclosure may paying the total past due amount before a foreclosure sale takes place".

58. The Defendants' notice is in breach of the strict compliance standard of the mortgage, the condition precedent to accelerate the Mortgage and a violation of the Statutory Power of Sale pursuant to M.G.L. ch. 183 §21 for failing to provide a "proper" default notice in accordance with Paragraph 22 of the Mortgage as a condition precedent to foreclosure.

59. As such, the Defendant, Shellpoint, failed to provide the Plaintiff or Defendant, Mr. Reardon, proper Notice of Default in breach of the Mortgage contract for failure to first comply with the terms of the mortgage prior to exercising the power of sale, rendering any acceleration, foreclosure, and sale void.

60. Due to these failures to comply with the terms of the mortgage, no entity was

contractually authorized to accelerate the mortgage, exercise the statutory power of sale, foreclose, and sell the subject property at mortgagee's foreclosure sale. These actions constituted breaches of the contracts, resulting in damages to the Plaintiff.

61. As a result of the above noted improper and invalid exercises of the statutory power of sale and purported foreclosure sale, the mortgage loan account was charged fees, costs and expenses for certified mail, advertising costs, legal fees, auctioneer costs and other pending charges.

62. The Plaintiff has incurred damages in asserting her rights, in regard to the improper actions of Defendant, Shellpoint, in seeking to accelerate without first complying with the terms of the mortgage in violation of G. L. c. 183, § 21 and in breach of the contract.

63. The Plaintiff has incurred fees for the prosecution of this action as a result of Defendants' wrongful acceleration, premature charging of fees to Defendant, Joseph Rearsdon's account in violation of G. L. c. 183, § 21 due to the breach of contract by Defendant, Shellpoint, as noted herein.

64. Plaintiff has suffered harm and is threatened with additional harm from Defendant's breach, including but not limited to loss of property interests, higher principal loan balances, emotional distress for fear of unlawful eviction; inappropriate fees and charges assessed to the account, including broker price opinion fees, inspection fees, attorney's fees, "process management" fees, late fees and other charges associated with delinquency and default, and increased accrued interest.

65. The Defendant, Shellpoint's, breach of contract and failure to comply with terms of the mortgage as noted herein above, are the direct cause of the harm alleged herein and not Plaintiff's or Defendant, Joseph Reardon's failure to make the mortgage payments.

66. Therefore, Plaintiff would not have suffered acceleration, foreclosure sale, or the harms as noted herein were it not for the Defendants' breach of the mortgage contracts.

67. The Defendants' failure to comply with the terms of the mortgage are a breach of the mortgage contract and also are in violation of G. L. c. 183, § 21. The foreclosure is therefore void. See, *U.S. Bank Nat. Ass'n v. Ibanez*, 458 Mass. 637, 647 (2011) ("the terms of the power of sale, G.L. c. 183, § 21, must be strictly adhered to").

68. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the premature charging of default related fees, and mortgagee's foreclosure sale of the subject property are in breach of contract and all void.

69. The Plaintiff is entitled to an injunction preventing the transfer of the right, title, and interest in her property.

70. The Plaintiff is entitled to cancellation costs and fees assessed for wrongful acceleration, together with additional damages.

71. The Plaintiff is entitled to be returned to the status and circumstances prior to any wrongful acceleration, foreclosure and sale.

72. The Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

COUNT II
BREACH OF CONDITION PRECEDENT TO ACCELERATION & FORECLOSURE

73. Plaintiff repeats and reincorporates all paragraphs above as if fully articulated herein.

74. Massachusetts permits non-judicial foreclosure under the statutory power of sale contained at G. L. c. 183, § 21, so long as the terms of the mortgage and the statutes related to the power of

sale are strictly complied with. The statute states:

Section 21. The following "power" shall be known as the "Statutory power of Sale", and may be incorporated in any mortgage by reference:

(POWER)

But upon any default in the performance or observance of the foregoing or other condition, the mortgagee or his executors, administrators, successors or assigns may sell the mortgaged premises or such portion thereof as may remain subject to the mortgage in case of any partial release thereof, either as a whole or in parcels, together with all improvements that may be thereon, by public auction on or near the premises then subject to the mortgage, or, if more than one parcel is then subject thereto, on or near one of said parcels, or at such place as may be designated for that purpose in the mortgage, first complying with the terms of the mortgage and with the statutes relating to the foreclosure of mortgages by the exercise of a power of sale, and may convey the same by proper deed or deeds to the purchaser or purchasers absolutely and in fee simple; and such sale shall forever bar the mortgagor and all persons claiming under him from all right and interest in the mortgaged premises, whether at law or in equity.

(Emphasis added).

75. In addition, the Massachusetts Statutory Power of Sale states as follows:

Section 14: Foreclosure under power of sale; procedure: notice; form

"The mortgagee or person having estate in the land mortgaged, or a person authorized by the power of sale, or the attorney duly authorized by a writing under seal or the legal guardian or conservator of such mortgagee or person acting in the name of such mortgagee or person, may, upon breach of condition and without action, perform all acts authorized or required by the power of sale "

"For purposes of this section and section 21 of chapter 183, **in the event** a mortgagee holds a mortgage pursuant to an assignment, no notice under this section shall be valid unless (i) at the time such notice is mailed, an assignment, or a chain of assignments, evidencing the assignment of the mortgage to the foreclosing mortgagee has been duly recorded in the registry of deeds for the county or district where the land lies and (ii) the recording information for all recorded assignments is referenced in the notice of sale required in this section. The notice shall not be defective if any holder within the chain of assignments either changed its name or merged into another entity during the time it was the mortgage holder; provided, that recited within the body of the notice is the fact of any merger, consolidation, amendment, conversion or acquisition of assets causing the change in name or identity, the recital of which shall be conclusive in favor of any bona fide purchaser, mortgagee, lienholder or encumbrancer of value relying in good faith on such recital." (emphasis added).

76. There is no valid assignment or transfer of the Note to Defendant Newrez, LLC, d/b/a Shellpoint Mortgaging Services.

77. Plaintiff avers that the Defendant, Shellpoint, did not send, and that Plaintiff did not receive any Default Notice or Acceleration Notice in accordance with Paragraph 22 of the Mortgage.

78. Plaintiff further alleges that any notice sent purporting to state compliance with paragraph 22 of the Mortgage failed to contain the required information as described in the Mortgage and or contained additional information that was not in strict compliance with said paragraph.

79. The Defendant, Shellpoint, has accelerated the mortgage. The acceleration is null and void.

80. As such, the Defendant, Shellpoint, failed to provide the Plaintiff proper Notice of Default in breach of the Mortgage contracts and are in violation of G. L. c. 183, § 21 for failure to first comply with the terms of the mortgage prior to exercising any power of sale, rendering any acceleration, foreclosure, and sale void.

81. Due to the Defendant, Shellpoint's, failure to obtain possession of the Note, as described above, Plaintiff avers that the Defendant, Shellpoint, will not be able to convey the property "by proper deed" in accordance with M. G. L. c. 183, § 21, as Newrez, LLC, d/b/a Shellpoint Mortgaging Services was never the assignee or transferee of the Note.

82. The Plaintiff is entitled to an injunction preventing the transfer of her right, title, and interest in the property since the Defendant, Shellpoint, will not be able to convey a "proper deed" that is marketable.

83. The Plaintiff is entitled to a declaratory judgment determining that the acceleration of all sums due under the note, the attempted foreclosure, and the attempted mortgagee's foreclosure

sale of the subject property and foreclosure deed are all void.

84. The Plaintiff is entitled to cancellation costs and fees assessed to the account for wrongful acceleration pursuant to the terms of the Note, Mortgage and c. 244 §35A(d) which prohibit the charging of such fees and costs prior to a proper acceleration, foreclosure, together with additional damages.

85. Plaintiff is entitled to actual, monetary, punitive and exemplary damages, restitution, an accounting, attorneys' fees and costs, equitable relief and all other relief as provided by state law.

Dated: December 1, 2025

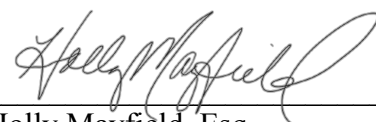


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VERIFICATION

I, the undersigned Holly Mayfield, being duly sworn, depose and say that I am the Plaintiff in the above-captioned matter. I have read the above "Verified Complaint" filed on December 1, 2025 and the facts stated therein are true to the best of my knowledge.

December 1, 2025



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